

SERIE A. No. 1

RECUEILS DES ARRÊTS

PUBLICATIONS
DE LA COUR PERMANENTE DE JUSTICE INTERNATIONALE

N° 1. Affaire du Vapeur *Wimbledon*.

COLLECTION OF JUDGMENTS

PUBLICATIONS
OF THE PERMANENT COURT OF INTERNATIONAL JUSTICE

No. 1. The S.S. "Wimbledon".

LEYDE
SOCIÉTÉ D'ÉDITIONS
A. W. SIJTHOFF
1923



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1923

APPLICATION INSTITUTING PROCEEDING ADDRESSED TO THE REGISTRAR OF THE COURT, IN CONFORMITY WITH ARTICLE 40 OF THE STATUTE, THROUGH THE INTERMEDIARY OF THE FRENCH LEGATION AT THE HAGUE, ON JANUARY 16TH, 1923.
(S.S. "WIMBLEDON.")

[*Translation.*]

To the President and Judges of the Permanent Court of International Justice.

The undersigned, being duly authorised by the GOVERNMENTS of HIS BRITANNIC MAJESTY, of the FRENCH REPUBLIC, of HIS MAJESTY THE KING OF ITALY, and of HIS MAJESTY THE EMPEROR OF JAPAN, Principal Allied Powers under the terms of the Treaty of Peace of Versailles of June 28th, 1919, acting conjointly ;

Having regard to Articles 380 to 386 of the aforementioned Treaty ;

Having regard to Article 37 and 40 of the Statute of the Court, and Article 35, paragraph 2, of the Rules of Court ;

Have the honour to submit the following application :

Under the terms of Article 380 of the Treaty of Peace of Versailles :

"The Kiel Canal and its approaches shall be maintained free and open to the vessels of commerce and war of all nations at peace with Germany on terms of entire equality."

On the morning of March 21st, 1921, the British steamship "Wimbledon", chartered by the French armament firm "Les Affréteurs réunis", proceeding to Danzig with a cargo of 4,000 tons of goods (military material), was refused access to, and free passage through the Kiel Canal by the German authorities.

In reply to the protests made to the German Government on this subject on March 23rd, 1921, by the French Ambassador

at Berlin, that Government reaffirmed its refusal to allow the passage of this vessel and, in justification of this refusal, alleged that the cargo of the steamship "Wimbledon" consisted of war material destined for Poland, that the Treaty of Peace between the latter country and Russia was not yet ratified, that there was therefore a state of war between those countries, and that German regulations regarding neutrality forbade the transit across German territory of war material destined for these two countries.

Under the terms of Article 386 of the Treaty of Peace of Versailles :

"In the event of violation of any of the conditions of Articles 380 to 386, or of disputes as to the interpretation of these Articles, any interested Power can appeal to the jurisdiction instituted for the purpose by the League of Nations."

Under the terms of Article 37 of the Statute of the Court :

"When a Treaty or Convention in force provides for the reference of a matter to a tribunal to be instituted by the League of Nations, the Court will be such tribunal."

Accordingly, subject to the subsequent presentation of the Court of any cases, counter-cases and, in general, of any other documents or evidence :

MAY THE COURT BE PLEASED :

To take note that for all notices and communications relating to the present case the applicant Powers have selected as their address the French Legation at The Hague ;

To give notice of the present application to the Government of the German Empire, in accordance with Article 40, paragraph 2, of the Statute of the Court ;

To give judgment, whether the aforementioned Government is present or absent, and after the expiration of such times as shall be fixed by the Court subject to any agreement between the parties, to the effect :

That the German authorities wrongfully refused on March 21st, 1921, free access to the Kiel Canal of the steamship "Wimbledon";

That the German Government shall make reparation for the loss incurred by the aforementioned vessel in consequence of this action, a loss which is estimated at francs 174,082.86, together with interest at 6% per annum as from March 20th, 1921.

(Signed) CHARLES BENOIST. CHARLES M. MARLING.
ITO. VITTORIO NEGRI.